

Executive Office of Environmental Affairs / Division of Conservation Services
GIS Data Entry Form

Self-Help, Urban Self-Help, SURF, Land & Water Conservation Fund Projects
and Conservation Restrictions

1. Contact Information:

Name:

Organization:

Address:

Telephone:

ROSS POVENMIRE
CONSERVATION COMMISSION
TOWN OF BOXFORD
7A SPOFFORD ROAD
BOXFORD, MA 01921
978-887-6000 x181

2. Grant Program (if applicable):

☐
☐
☐
☐

Self-Help
Urban Self-Help
SURF
Land & Water Conservation Fund

3. Municipality:

BOXFORD

Project Number

Site Name

Boxford CR# 32

4. a. Fee Owner:

BTA/BOLT Inc

(Holder of the Deed)

b. Manager (if different from Owner):

5. *Conservation Restriction held by:

*Complete only if land is encumbered by a Chapter 184 section 31-33 Conservation Restriction.

Check the box corresponding to how the restriction was obtained:

☒

Gifted

☐

Exacted by Regulation

☐

Purchased

Number of reserved lots within the restriction, if any:

6. Assessor's Information

32
(map)

4
(block)

26
(lot)

7. Registry Information
(for this project)

Essex South
(name)

27356
(book)

128
(page)

214
(plan book)

79
(page)

8. Acreage:

11.77 acres

9. Primary Use: (select one)

☒
☐
☐
☐
☐
☐
☐

Conservation & Passive Recreation Public
Active Recreation (parkland)
Both Conservation and Active Recreation
Water Supply Protection
Agriculture
Historic/Cultural
Other (please explain)

Legal Public Access:

☐
☐
☐
☐
☐

Public, residents only
Public, seasonal
None
Other (please explain)

The applicant must provide to the Executive Office of Environmental Affairs materials that will allow MassGIS to accurately represent the site in the state's open space data layer. These materials include:

1. A USGS topological map or copy (including the name & date of the quad) with the site accurately drawn on it.
2. A copy of the site plan and/or a survey plan if available (required for exacted conservation restrictions).
3. A printout of the digital representation of the site on a USGS topological map background and a note indicating that the digital representation of the site has been emailed to scott.costello@state.ma.us in appropriate format (Massachusetts State Plane Meters NAD1983 Datum) with a subject line of: <town> <Project Type> <Project#> (e.g. Boston CR #12).

MassGIS will attempt to add the site to the open space data layer using these materials but may request additional material from the grantee if the materials provided are not at an appropriate scale or are not sufficiently clear to support conversion to digital data that conform to MassGIS data standards. Topographical maps can be purchased at book stores or printed from <http://www.mass.gov/mgis/mapping.htm>. Please call Scott Costello at MassGIS, 617.626.1076, with any questions or for assistance with this form.



USGS LAWRENCE QUADRANGLE 1987

W/ PARCEL DATA OVERLAY SHOWING CR LOCATION *

*DIGITAL COPY EMAILED TO DOMINIQUE.PAHLAVAN@STATE.MA.US 12/13/2007



The Commonwealth of Massachusetts
Executive Office of Energy and Environmental
Affairs
100 Cambridge Street, Suite 900
Boston, MA 02114

Deval Patrick
GOVERNOR

Timothy Murray
LIEUTENANT GOVERNOR

Ian A. Bowles
SECRETARY

Tel: (617) 626-1000
Fax: (617) 626-1181
<http://www.mass.gov/envir>

November 13, 2007

Judy Gore
Boxford Trails Assoc./Boxford Open Land Turst
P.O. Box 95
Boxford, MA 01921

Re: Townsend Farms; Boxford CR#32

Dear Judy:

The subject conservation restriction has been approved and signed by Secretary Ian A. Bowles. It may now be recorded in the registry of deeds. Please forward a copy of the recorded instrument showing the registry book and page number(s) and the date of recording.

Kindly fill out the attached **GIS Data Entry Form** and provide a copy of the **USGS topo map with the site accurately drawn on it** when you have the registry recording information and return it to me as soon as possible so that we may complete our records. Thank you.

Sincerely,

Irene Del Bono
Irene Del Bono
Conservation Restriction Reviewer

enc.

cc: Board of Selectmen

all sent to state
12-13-07

COPY
approved C.R.
Oct 9 2007
INST 270
Book 27356-128

CONSERVATION RESTRICTION

The undersigned, Boxford Trails Association/Boxford Open Land Trust, Inc. (BTA/BOLT), a Massachusetts nonprofit corporation incorporated under the laws of the Commonwealth of Massachusetts with an address of 7 Elm Street, P.O. Box 95, Boxford, Massachusetts for nominal consideration, hereby GRANTS, with QUITCLAIM COVENANTS, to the Town of Boxford, a Massachusetts municipal corporation acting by and through its Conservation Commission pursuant to Mass. Gen. L. ch. 40, § 8C, having its principal office at Boxford Town Hall, 7A Spofford Road, Boxford, Massachusetts 01921, its successors and permitted assigns, in perpetuity and exclusively for conservation purposes, a Conservation Restriction on a parcel of land located in Boxford, Essex County, Massachusetts containing approximately 11.77 acres shown as Parcel "A" on a subdivision plan entitled "Definitive Subdivision Plan of Townsend Farms in Boxford, Massachusetts, owner and applicant Middleton Road Boxford Realty Trust, Engineer Hancock Survey Associates, Scale 1" = 200', dated December 2, 1985," (the "Plan") recorded in Essex South District Registry of Deeds Plan Book 214, Plan 79 and incorporated herein by reference (the "Property"). Said BTA/BOLT and its successors or assigns in title to the Property are hereinafter called the "Grantor" and the Boxford Conservation Commission and its successors and permitted assigns are hereinafter called the "Grantee". For Grantor's title see deed recorded with Essex South District Registry of Deeds at Book 22544, Page 581.

I. PURPOSES

This Conservation Restriction is defined in and authorized by Sections 31-33 of Chapter 184 of the Massachusetts General Laws and otherwise by law. Its purposes are to assure that the Property will be retained in its natural, scenic and undeveloped condition and to prevent any use of the Property that will significantly impair or interfere with the conservation values of the Property. The protected conservation values and the public benefits resulting from the protection of the Property in the manner provided in this Conservation Restriction include the following, without limitation:

A. The Property provides significant scenic, aesthetic, scientific, educational, recreational, and historic value in its present state as a natural area and open space which has not been subjected to development incompatible with said uses;

B. The Property contains a stream that is a tributary of Fish Brook, an important watershed, which is itself a tributary of the Ipswich River, adjoining freshwater wetlands and forested upland representing a diversity of plant and wildlife habitat, including habitat for the endangered Blanding's Turtle;

C. The Property comprises and protects part of the Fish Brook and Ipswich River watershed, one of the most stressed watersheds in the nation;

D. The Grantor and Grantee recognize the uniqueness of the Property as a distinctive Massachusetts landscape embodying the special character of the region in which the Property is located and have the common purpose of conserving the natural values of the Property for this generation and future generations; and

E. The Property held under permanent protection of a conservation restriction is consistent with the goals and objectives set forth in the Town of Boxford 2001 Open Space and Recreation Plan.

THEREFORE, in order to preserve the Property in perpetuity in its present natural, scenic, and open condition, the Grantor conveys to the Grantee a perpetual Conservation Restriction within the meaning of Chapter 184, Section 31 et. seq. of the General Laws of Massachusetts, as amended.

The terms of this Conservation Restriction are as follows:

II. PROHIBITED AND PERMITTED ACTIVITIES AND USES

A. Prohibited Activities and Uses. Except as otherwise herein provided, the Grantor shall neither perform nor permit others to perform any of the following acts or uses in, on, over or under the Property:

1. Construction or placing of any building, structure, facility or improvement on, over or under the Property, including but not limited to tennis courts, landing strips or pads, mobile homes, swimming pools, septic systems, roads, signs, fences, billboards or other advertising display, utilities, conduits, poles, antennas, towers, monopoles, windmills, solar panels, docks, wharfs, or other temporary or permanent structures, facilities, or improvements of any kind on, over or under the ground unless otherwise permitted in Paragraph B.2 below;

2. Dumping or placing of soil, grass clippings, compost, yard debris or other substances on the ground as landfill, or dumping or placing of vehicle bodies or parts, junk, trash, refuse, solid or chemical waste or unsightly or offensive materials, or the installation of underground storage tanks;

3. Cutting, removal, harvesting or destruction of trees, grasses, shrubs or other vegetation unless otherwise permitted in Paragraph B below;

3. Mining, excavating, dredging or removal from the Property of loam, peat, sand, gravel, soil, rock or other mineral substances or natural deposits except as necessary for proper drainage or soil conservation and then only in a manner which does not impair the purposes of this Conservation Restriction after consultation with and approval by the Grantee;

4. Any commercial use or activity, unless the activity is otherwise permitted in Paragraph B below; any residential or industrial use or activity; and any municipal use not related to the purposes of this Conservation Restriction;

5. Use of motorized vehicles of any nature or kind, including but not limited to cars, trucks, motorcycles, all-terrain vehicles and snowmobiles, except such as may be reasonably required by police, firemen or other governmental agents in carrying out their lawful duties or for reasonable access by persons with disabilities, and except for cars, trucks and farm vehicles used for purposes permitted by this Conservation Restriction as provided in Paragraph B below;

6. The use, landing, or storage of aircraft, helicopters, or similar machines or devices, except as reasonably required by police, firefighters or other emergency personnel or government agents in carrying out their lawful duties;
7. Use of the Property in any manner or for any purpose except for agriculture, forestry or outdoor recreational purposes or other purposes that permit the Property to remain predominantly in its natural condition;
8. Activities detrimental to drainage, flood control, water or soil conservation, water quality, or erosion control or the removal, disturbance or other activities detrimental to wildlife or wildlife habitat;
9. Conveyance of a part or portion of the Property alone, or division or subdivision of the Property (as compared to conveyance of the Property in its entirety which shall be permitted, subject to the provisions herein), without the prior written approval of the Grantee, whose approval shall not be unreasonably withheld;
10. The use of the Property for camping, hunting, trapping or discharge of firearms;
11. The use of the Property for (a) transferring development rights to any property, whether or not the receiving land is adjacent to the Property; (b) calculating permissible lot yield of any other land; and (c) use in any calculations involving development of any other land, whether or not adjacent to the Property, in any manner whatsoever (except in the event that adjacent land is to be used for a municipal water supply resource);
12. Commercial recreational activities. In no event shall the property be used for commercial recreation activities in compliance with Section 2031(c)(8)(B) of the Internal Revenue Code or any successor statute or regulation; or
13. Any other use of the Property or activity which is inconsistent with the purposes of this Conservation Restriction or which would materially impair other significant conservation values unless such use or activity is necessary for the protection of the conservation values that are subject to this Conservation Restriction.

B. Reserved Rights: Exceptions to Prohibited Activities and Uses.
Notwithstanding the provisions of Paragraph A, the Grantor reserves the right to conduct or permit the following activities on the Property provided that such uses and activities do not materially impair the purposes of this Conservation Restriction or other significant conservation values:

1. Within forested areas, in accordance with accepted silvicultural practices and generally accepted forest management practices, the selective removal, pruning and cutting of trees, shrubs and other vegetation to prevent, control, or remove hazards, disease or insect damage, or fire, all in accordance with a cutting plan approved by the Grantee;
2. The erection and maintenance of a minimal number of signs with respect to (a) the location of boundary lines, (b) hunting and trespassing, (c) identifying the Grantor as the owner of the Property, (d) identifying the Grantee as the holder of this Conservation Restriction, (e) regulating the use of the Property by visitors, and (f) educating the public about the conservation values protected;
3. The right, but not the obligation, to conduct ecological restoration activities to maintain and restore plant and wildlife habitat. Prior to commencing any restoration or maintenance activities, restoration plans shall be developed by the Grantor after consultation with the Grantee and with the Grantee's approval, whose approval shall not be unreasonably withheld;
4. Passive outdoor recreational activities such as walking, running, horseback riding, fishing, bicycling, snowshoeing and cross-country skiing;
5. The right, but not the obligation, to selective removal or pruning of brush and trees along the roadside and stonewall abutting the Property in accordance with a plan approved by the Grantee and subject to the Scenic Roads Act, Shade Tree Act, and any other applicable Boxford or state regulations;

6. Activities designed to enhance the ecological or natural historical value of the Property, including wildlife habitat improvement after consultation with the Grantee and with the Grantee's approval, whose approval shall not be unreasonably withheld;

7. Activities designed to control exotic plant species on the Property in accordance with a plan approved by the Grantee, whose approval shall not be unreasonably withheld;

8. Hiking, wildlife observation and other passive noncommercial outdoor recreational and educational activities consistent with the purposes of this Conservation Restriction;

9. Construction and maintenance of trails for passive recreational activities listed in Paragraph 4 above;

10. Access and use of the Property by the public shall be permitted in accordance with Section IV.B; or

11. Such other activities requested by the Grantor and expressly approved by the Grantee as are consistent with the purposes of this Conservation Restriction.

The exercise of any right reserved by the Grantor under this Paragraph B shall be in compliance with the following: (a) then-current building, zoning, planning, and conservation regulations, bylaws or ordinances applicable to the Property, (b) any special permits or variances pertaining to the Property, (c) the Wetlands Protection Act (General Laws Chapter 131, Section 40), and (d) all other applicable federal, state and local laws and regulations. The inclusion of any reserved right in Paragraph B of Section II requiring a permit from a public agency merely means that the Grantor may have a right to request a permit, it does not mean that the Grantee takes any position on whether such permit should be issued.

C. Unspecified Activities and Uses are Prohibited. All acts and uses not expressly permitted in Paragraph B of Section II are prohibited unless otherwise authorized by the Grantee pursuant to Paragraph D below.

D. Notice to and Approval by Grantee. Whenever notice to or approval by the Grantee is required under the provisions of Paragraphs A, B or C of Section II, or any other provision or condition herein, the Grantor shall notify the Grantee in writing not less than sixty (60) days prior to the date the Grantor intends to undertake the activity in question. The notice shall describe the nature, scope, design, location, timetable and any other material aspect of the proposed activity in sufficient detail to permit the Grantee to make an informed judgment as to its consistency with the purposes of this Conservation Restriction. Where the Grantee's approval is required by the terms of this Conservation Restriction, the Grantee shall grant or withhold its approval in writing within thirty (30) days of receipt of the Grantor's written request therefore. Grantee's approval may be withheld upon a determination by the Grantee at its sole discretion that the action as proposed would be inconsistent with the purposes of this Conservation Restriction. Failure by the Grantee to respond within that time period will be deemed an approval of the activity.

III. ACCESS

A. Access by the Grantee. The Grantee through its duly designated officers, directors, members, employees, representatives or agents shall have the right to enter the Property following reasonable notice and at reasonable times and in a reasonable manner for the purpose of inspecting the Property and determining compliance with the terms of this Conservation Restriction.

B. Access by the Public. The Grantor recognizes that certain portions of the Property are presently used by the general public to pass and repass by foot, horseback, snowshoe and cross country ski for purposes of quiet outdoor recreational and educational activities. The Grantor and its successors and assigns shall permit the continuance of such activities provided (1) that any such activity shall be limited to daylight hours only (unless otherwise permitted by BTA/BOLT); (2) that no motor vehicles of any kind other than those for reasonable access by persons with disabilities shall be permitted; (3) that no camping, hunting, trapping or discharge of firearms shall be conducted; (4) that no dumping, waste disposal, or littering of any kind be allowed; and (5) that no activity of a commercial nature be allowed. The Grantor hereby reserves

the right to alter the locations of established trails, after consultation with the Grantee and with the Grantee's approval, provided that as so relocated, neither the conservation values of this Conservation Restriction nor access to and passage through the Property is impaired.

IV. LEGAL RIGHTS AND REMEDIES OF THE GRANTEE

A. **Legal and Injunctive Relief.** The rights hereby granted include the right to enforce this conservation restriction by appropriate legal proceedings and to obtain injunctive and other equitable relief against any violations, including without limitation relief requiring restoration of the Property to its condition prior to the time of the injury complained (it being agreed that the Grantee may have no adequate remedy at law), and shall be in addition to, and not in limitation of, any other rights and remedies available to the Grantee.

B. **Actions to Prevent or Remedy Violations.** The Grantee shall have the right to take appropriate actions to prevent, abate, or remedy violations of this Conservation Restriction.

C. **Reimbursement of Costs of Enforcement.** The Grantor and the successors and assigns of the Grantor covenant and agree, to the extent permitted by law, to reimburse the Grantee for all reasonable costs and expenses (including without limitation reasonable counsel fees) incurred in enforcing this Conservation Restriction or in taking reasonable measures to remedy or abate any violation thereof, provided that a violation of this Conservation Restriction is acknowledged by the Grantor or determined by a court of competent jurisdiction to have occurred.

D. **Grantee's Disclaimer of Liability.** By its acceptance, the Grantee does not undertake any liability or obligation relating to the condition of the Property.

E. **Non-Waiver by Grantee.** Enforcement of the terms of this Conservation Restriction shall be at the discretion of the Grantee, and any forbearance by the Grantee to exercise its rights under this Conservation Restriction shall not be deemed or construed to be a waiver.

F. Acts Beyond Grantor's Control. Nothing contained in this Conservation Restriction shall be construed to entitle Grantee to bring any action against Grantor for any injury to or change in the Property resulting from causes beyond the Grantor's control, including but not limited to, fire, flood, storm and earth movement, public recreation, and acts caused by trespass on the Property not contributed to by acts or omissions of the Grantor, of or from any prudent action taken by the Grantor under emergency conditions to prevent, abate, or mitigate significant injury to the Property resulting from such causes.

V. ASSIGNMENT BY GRANTEE

The benefits of this Conservation Restriction shall be deemed to be in gross and the Grantee and its successors and assigns shall have the right to assign all or a portion of its right, title and interest hereunder to a "Qualified Organization" as defined in Section 170 (h) (3) of the Internal Revenue Code provided that such assignee shall also be an eligible donee of a conservation restriction as set forth in Chapter 184, Section 32 of the General Laws of Massachusetts, and provided further that, as a condition of such assignment, the assignee is required to hold this Conservation Restriction and enforce its terms for conservation purposes and, to the extent required by law, comply with the provisions of Article 97 of the Amendments to the Massachusetts Constitution. The Grantee shall notify the Grantor in writing at least thirty (30) days in advance of any such assignment, but the failure of the Grantee to do so shall not impair the validity of this Conservation Restriction or limit its enforceability in any way.

VI. SUBSEQUENT TRANSFERS

A. Reference to Conservation Restriction in Future Deeds. The Grantor agrees to incorporate the terms of this Conservation Restriction by reference in any deed or other legal instrument by which they divest themselves of any interest in all or a portion of the Property, including without limitation, any leasehold interest or option.

B. Representations of the Grantee. The Grantee represents that it is a not for profit corporation, that it has a perpetual existence, that it is organized and operated for

the purpose of preserving and conserving natural resources, natural habitats, environmentally sensitive areas and for other charitable, scientific and educational purposes, that it has both the necessary funds and commitment to hold this Conservation Restriction exclusively for conservation purposes in perpetuity and to enforce its terms, and that it is a "Qualified Organization" as that term is defined in Section 170 (h) (3) of the Internal Revenue Code of 1986, as amended.

C. Required Notifications of Transfers. The Grantor shall notify the Grantee in writing at least sixty (60) days before conveying the Property, or any part thereof or interest therein (including a leasehold interest or option). The Grantee shall notify the Grantor in writing at least thirty (30) days before it assigns this Conservation Restriction. Any failure by Grantor or Grantee to provide notification as provided for herein shall not invalidate or extinguish this Conservation Restriction or limit its enforceability in any way.

VII. EXTINGUISHMENT

A. Termination or Extinguishment. This Conservation Restriction can only be terminated or extinguished, whether in whole or in part, by judicial proceedings in a court of competent jurisdiction, based on circumstances arising in the future that render the purposes of this Conservation Restriction impossible to accomplish, or by two-thirds vote of the General Court pursuant to statutory process.

B. Grantee's Receipt of Property Rights. The Grantor and Grantee agree that if this Conservation Restriction should ever be terminated or extinguished, the proceeds, if any, shall first be distributed to the Grantor, or their successors or assigns, for the purchase of other land in Boxford for similar conservation and recreational purposes as stated herein and Grantor shall convey to Grantee a conservation restriction on such land similar in form and purpose to the conservation values stated herein. If, within 30 days of such termination or extinguishment, no other similar land is available for purchase by Grantor, then the Grantee, on a subsequent sale, exchange or involuntary conversion of the Property, shall be entitled to a portion of the proceeds equal to such proportionate value described in Paragraph C below, subject however, to any applicable law which expressly provides for a different disposition of proceeds.

therein, by the Grantor, its successors and assigns and its duly designated officers, directors, members, employees or agents as holders of this Conservation Restriction.

C. Value of Grantee's Property Right. The Grantor and Grantee agree that the donation of this Conservation Restriction gives rise, for purposes of this Paragraph, to a property right, immediately vested in the Grantee, with a fair market value that is at least equal to the proportionate value that this Conservation Restriction, determined at the time of the gift, bears to the value of the unrestricted Premises at that time and represents all land development rights associated with the Property. Such proportionate value of the Grantee's property right shall remain constant.

D. Cooperation Regarding Public Auction. Whenever all or any part of the Property or any interest therein is taken by public authority under power of eminent domain, or if all or any part of this Conservation Restriction is otherwise extinguished by act of public authority then the Grantor and the Grantee shall cooperate in recovering the full value of all direct and consequential damages resulting from such action. All related expenses incurred by the Grantor and the Grantee shall first be paid out of any recovered proceeds, and the remaining proceeds shall be distributed to the Grantor for the purchase of similar conservation land as provided in Paragraph B and in the event that no similar conservation land is available for purchase, then the remaining proceeds shall be distributed between the Grantor and the Grantee in shares equal to such proportionate value as described in Paragraph C above.

E. Continuing Trust after Disposition of Conservation Restriction. The Grantee shall use its share of the proceeds in a manner consistent with the conservation purpose set forth herein.

VIII. BINDING EFFECT; INTERPRETATION

A. Running of the Benefit. The benefits of this Conservation Restriction shall be deemed to be in gross and the Grantee shall have the right to assign its interests herein to the extent and in the manner provided in Section VI.

B. Running of the Burden. The burdens of this Conservation Restriction shall be deemed to run with the Property, shall be enforceable in perpetuity against the Grantor, the Grantor's successors in title to the Property, and any person holding any interest

herein, by the Grantor, its successors and assigns and its duly designated officers, directors, members, employees or agents as holders of this Conservation Restriction.

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therein, by the Grantee, its successors and assigns and its duly designated officers, directors, members, employees or agents as holders of this Conservation Restriction.

C. Termination of Rights and Obligations. Notwithstanding anything to the contrary contained herein, the rights and obligations under this Conservation Restriction of any party holding any interest in the Property shall terminate upon transfer of that party's interest in the Property. Liability for acts or omissions occurring prior to any transfer and liability for any transfer in violation of this Conservation Restriction shall survive the transfer.

D. Prior Encumbrances. This Conservation Restriction shall be in addition to and not in substitution of any other restrictions or easements of record affecting the Property.

E. Pre-Existing Rights of the Public. The approval of this Conservation Restriction by any municipal or state authority is not to be construed as representing the existence or nonexistence of any pre-existing rights of the public, if any, in and to the Property. Any pre-existing rights of the public are not affected by the granting of this Conservation Restriction.

F. Execution of Instruments. The Grantee is authorized to record or file any notices or instruments appropriate to assuring the perpetual enforceability of this Conservation Restriction. The Grantor and its successors and assigns agree to execute any such instrument its review and approval.

G. Effective Date. The Grantor and the Grantee intend that the restrictions arising hereunder take effect when all the requisite signatures pursuant to Section 32 of Chapter 184 of the General Laws of Massachusetts have been obtained and this document has been recorded in a timely manner in the appropriate Essex County Registry of Deeds.

H. Controlling Law. The interpretation of this Conservation Restriction shall be governed by the laws of the Commonwealth of Massachusetts.

I. Liberal Construction; Severability. This Conservation Restriction shall be liberally construed in favor of the grant to effect its conservation purposes and the

policies and purposes of M.G.L. Chapter 184, Sections 31-33. If any provision of this instrument is found to be ambiguous, an interpretation consistent with the purposes of this Conservation Restriction that would render it valid shall be adopted over any interpretation that would render it invalid. If any provision or condition of this Conservation Restriction shall be declared invalid, the remaining provisions shall not be affected.

IN WITNESS WHEREOF, the said _____ have
J. Entire Agreement. This instrument sets forth the entire agreement of the parties regarding this Conservation Restriction and supercedes all prior discussions, negotiations, understandings or agreements.

Name: Natasha Goida
K. Non-Merger. No future assignment of Grantor's or Grantee's interest in the Property or future acquisition of any interest in the Property by Grantor or Grantee shall cause this Conservation Restriction to merge with the fee or render any terms unenforceable pursuant to the so-called Doctrine of Merger.

Name: David Ingalls
L. Notices. Any notice, demand, request, consent, approval, or other communication that either party desires or is required to give pursuant to this Conservation Restriction is deemed delivered upon receipt and shall be in writing and delivered by hand, by facsimile or by first class mail and addressed as follows:

COMMONWEALTH OF MASSACHUSETTS
To Grantor: BTA/BOLT
7 Elm Street
P.O. Box 95
Boxford, MA 01921

To Grantee: Boxford Conservation Commission
Boxford Town Hall
7A Spofford Road
Boxford, MA 01921

Ross M. Pevanakis
Notary Public
My Commission Expires: _____
IX. ESTOPPEL CERTIFICATES

Upon request by the Grantor, the Grantee shall within thirty (30) days execute and deliver to the Grantor a written certificate of compliance in recordable form which certifies the Grantors' compliance with any obligation of the Grantor contained in this Conservation Restriction, and which otherwise evidences the status of this Conservation Restriction.

IN WITNESS WHEREOF, the said _____ have hereunto set their hands and seals this 22 day of October, 2006.

By: Natasha Grigg

Name: ~~Judy Gore~~ Natasha Grigg

Title: President

Hereunto Duly Authorized

By: David Ingalls

Name: David Ingalls

Title: Treasurer

Hereunto Duly Authorized

COMMONWEALTH OF MASSACHUSETTS

Essex, ss.

On this 22 day of October, 2006, before me, the undersigned notary public, personally appeared Judy Gore and David Ingalls, proved to me through satisfactory evidence of identification which was PERSONAL KNOWLEDGE to be the persons whose names are signed on the preceding document, and acknowledged to me that they signed it voluntarily for its stated purpose.

Ross M. Povenmire
Notary Public
My Commission Expires
March 12, 2010

Ross M. Povenmire
Notary Public
My commission expires:

The Town of Boxford Conservation Commission hereby accepts this Conservation Restriction and agrees to be bound by its terms.

APPROVAL BY SELECTMEN

Town of Boxford Conservation Commission

We, the undersigned Board of Selectmen of the town of Boxford, Massachusetts, hereby certify that at a meeting duly held on _____, 2007, we approved the foregoing Conservation Restriction for the preservation of the natural public interest pursuant to Massachusetts General Laws Chapter 91A, Section 32.

By: Julia Schneider Mathews
Name: Julia Schneider Mathews
Title: Chairman Cons. Comm.

By: [Signature]
Name: [Name]
Title: Member

By: P. Richards
Name: Peter Richards
Title: Member

By: Lana R. Sequin-Spillman
Name: Lana R. Sequin-Spillman
Title: Vice Chairman Cons. Comm.

By: [Signature]
Name: BANKS CRITER JR
Title: MEMBER.

Hereunto duly authorized by vote dated: _____

COMMONWEALTH OF MASSACHUSETTS

Essex, ss.

On this 20th day of September 2007, before me, the undersigned notary public, personally appeared Julia Schneider Mathews and proved to me through satisfactory evidence of identification which was personal knowledge to be the persons whose names are signed on the preceding document, and acknowledged to me that they signed it voluntarily for its stated purpose.

[Signature]
Notary Public
My commission expires: _____

Ross M. Povenmire
Notary Public
My Commission Expires
March 12, 2010

APPROVAL BY SELECTMEN

We, the undersigned Board of Selectmen of the Town of Boxford, Massachusetts, hereby certify that at a meeting duly held on Oct. 9, 2006 the Selectmen voted to approve the foregoing Conservation Restriction to the Boxford Conservation Commission for the preservation of the natural resources of said Town and being in the public interest pursuant to Massachusetts General Laws Chapter 184, Section 32.

TOWN OF BOXFORD
BOARD OF SELECTMEN

Stephen A. Davis

Peter C. Rutini

Barbara D. Jessel

Barbara L. Beardsley

COMMONWEALTH OF MASSACHUSETTS

Essex, ss.

On this 9th day of Oct, 2006, before me, the undersigned notary public, personally appeared Stephen A. Davis, a member of the Town of Boxford Board of Selectmen, proved to me through satisfactory evidence of identification which was Personally Known to be the person whose name is signed on the preceding document, and acknowledged to me that he/she signed it voluntarily for its stated purpose as a member of the Boxford Board of Selectmen.

Patricia A. Shields
Notary Public

My commission expires:

PATRICIA A. SHIELDS
Notary Public
Commonwealth of Massachusetts
My Commission Expires
September 27, 2013

**APPROVAL BY SECRETARY OF THE EXECUTIVE OFFICE OF ENERGY AND
ENVIRONMENTAL AFFAIRS**

The undersigned Secretary of the Executive Office of Energy and Environmental Affairs of the Commonwealth of Massachusetts hereby certifies that the foregoing Conservation Restriction to the Boxford Trails Association/Boxford Open Land Trust, Inc. has been approved in the public interest pursuant to Massachusetts General Laws Chapter 184, Section 32.

Date: _____

Secretary of Energy and Environmental Affairs

Ian Bowles, Secretary

**Executive Office of Energy and
Environmental Affairs**

I have personally appeared before me the above-named Ian A. Bowles, Secretary, Executive Office of Energy and Environmental Affairs, and proved to me through satisfactory evidence of identification, which was (personal knowledge of identity) (documentary evidence) (affirmation of identity), to be the person whose name is signed on the document and acknowledged to me that he/she signed it voluntarily as Secretary of Energy and Environmental Affairs for the Commonwealth of Massachusetts for its stated purpose.

Notary Public

My Commission expires

12/15/2011

Exhibit A

APPROVAL BY SECRETARY OF ENERGY AND ENVIRONMENTAL AFFAIRS
COMMONWEALTH OF MASSACHUSETTS

The undersigned, Secretary of the Executive Office of Energy and Environmental Affairs of the Commonwealth of Massachusetts, hereby certifies that the foregoing Conservation Restriction to the Boxford Trails Association/Boxford Open Land Trust, Inc. has been approved in the public interest pursuant to M.G.L. Chapter 184, Section 32

Date: 4/10, 2007



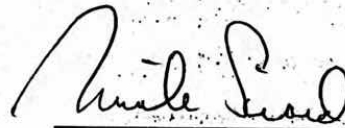
Secretary of Energy and Environmental Affairs

COMMONWEALTH OF MASSACHUSETTS

Iffolk, ss.

Nov. 8, 2007

Then personally appeared before me the above-named Ian A. Bowles, Secretary, Executive Office of Energy and Environmental Affairs, and proved to me through satisfactory evidence of identification, which was (*personal knowledge of identity*) (~~a current driver's license~~) (~~a current U.S. passport~~), to be the person whose name is signed on the document and acknowledged to me that he/she signed it voluntarily as Secretary of Energy and Environmental Affairs for the Commonwealth of Massachusetts, for its stated purpose.



Notary Public

My Commission expires: 12/15/2011

Exhibit A

The land subject to this Conservation Restriction (the "Premises") consists of the property shown as Parcel "A" on a subdivision plan entitled "Definitive Subdivision Plan of Townsend Farms in Boxford, Massachusetts, owner and applicant Middleton Road Boxford Realty Trust, Engineer Hancock Survey Associates, Scale 1"=200", dated December 2, 1985," (the "Plan") recorded in Essex South District Registry of Deeds Plan Book 214, Plan 79.

First Entrance,
Townsend Farms Rd. 19

First Entrance,
Townsend Farms Rd. 19

2.

First Entrance, Townsend Farms Rd. 19

334896E 4724257N Facing N

First Entrance, Townsend Farms Rd. 19

334896E 4724257N Facing N